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Ontario Court Quashes McMaster Penalties



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In a strong rebuke to McMaster University, the Ontario Superior Court quashed penalties levied against four professors by an internal tribunal adjudicating disputes within the DeGroote School of Business.

The Court ruled that the University tribunal's three-year suspensions without pay of three of the faculty "were excessively long," "had the effect of destroying the employment relationship" and failed to consider "a number of obviously relevant mitigating factors." It ordered the suspensions be reduced to one year and that the university president "establish a fair and independent arbitral process" to determine the "compensatory entitlements" to be paid to the three. The suspension

without pay of the fourth was reduced to one semester, with similar entitlement to compensation.

“We are pleased that the Court recognized the injustice of what happened at McMaster,” said David Robinson, Executive Director of the Canadian Association of University Teachers, which provided the faculty members with legal representation.

The professors also raised a number of alleged procedural errors that were made by the tribunal. The Court did not agree that they constituted problems that would justify the re-hearing of the case.

McMaster is the only university in Canada that allows no appeal of suspensions, leaving judicial review as the only recourse. It is also one of only a handful of universities where disputes cannot be taken to an independent third-party arbitrator for final resolution.

“We hope this court decision will spur McMaster to rethink its approach to disciplinary matters and afford its academic staff the same rights as their colleagues have in the rest of the country,” said Robinson.

CAUT is the national voice for over 68,000 academic and general staff working in more than 120 colleges and universities across Canada.

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